

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 960

BY WAYS AND MEANS COMMITTEE

AN ACT

RELATING TO ABATEMENT DISTRICTS; AMENDING SECTION 39-2804, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE POWERS AND DUTIES OF ABATEMENT DISTRICTS; AMENDING SECTION 39-2812, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING AERIAL ABATEMENT AND TO MAKE TECHNICAL CORRECTIONS; AMENDING CHAPTER 28, TITLE 39, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 39-2814, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING PARTICIPATION IN ABATEMENT DISTRICTS BY PROPERTY OWNERS; AMENDING SECTION 39-2814, IDAHO CODE, TO REDESIGNATE THE SECTION; AND DECLARING AN EMERGENCY.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 39-2804, Idaho Code, be, and the same is hereby amended to read as follows:

39-2804. POWERS AND DUTIES OF ABATEMENT DISTRICTS. The abatement district board of trustees is authorized:

(1) To appoint a director to direct the activities of the district, in accordance with training and experience necessary to fulfill the duties of the position;

(2) To appoint such other persons as necessary, determine their duties and compensation, and make rules and regulations respecting them;

(3) To take all necessary and proper steps for the control of mosquitoes and other vermin of public health and welfare importance in the district and ~~for these purposes shall have the right to enter upon any and all lands;~~

(4) To sue and be sued;

(5) To contract to purchase, hold, dispose of, and acquire by gift real and personal property in the name of the district. ~~To exercise the right of eminent domain and for these purposes to condemn any necessary land or rights-of-way in accordance with general law;~~

(6) To abate as nuisance breeding places of mosquitoes or other vermin of public health and welfare importance within the district or within migrating distance of the district by use of chemicals or permanent control measures and in this connection have the right to enter ~~upon~~ on any and all public lands;

(7) To work with the lateral ditch water users associations, irrigation, drainage and flood control districts and other cooperating organizations. The board of trustees of the abatement district may supplement funds of cooperating organizations for improvement, repair, maintenance, and cleaning of ditches ~~which~~ that will temporarily or permanently eliminate mosquito breeding or for other activities ~~which~~ that will benefit the district;

(8) To file annually with the board of county commissioners for their approval an estimate of funds required for the next year, a plan of the work to be done, and methods to be employed. No procedure, work, or contract for

1 any year of operation shall be done or entered ~~upon into~~ until plans and bud-
 2 get have been jointly approved by the board of county commissioners-;

3 (9) To file, annually or by February 1 of the succeeding year, with the
 4 board of county commissioners a report setting forth the moneys expended
 5 during the previous year, methods employed, and work accomplishments-; and

6 ~~(10) To approve a written mosquito or other vermin management plan~~
 7 ~~submitted by a landowner requesting that their property be excluded from~~
 8 ~~treatment by the abatement district. Such plan must be specific to the~~
 9 ~~landowner's property, provide adequate control measures, and be implemented~~
 10 ~~by the landowner. The abatement district shall refrain from treatment of~~
 11 ~~property included in the approved plan, but shall maintain monitoring and~~
 12 ~~surveillance activities. If the landowner fails to follow the plan or does~~
 13 ~~not provide adequate control measures, the abatement district may abate the~~
 14 ~~mosquitoes or other vermin.~~

15 ~~(11)~~ (10) To cooperate with other entities. At its discretion, a dis-
 16 trict may cooperate with and enter into annual agreements or contract with
 17 governmental agencies of this state, other states, agencies of the federal
 18 government, private associations, and private individuals in order to carry
 19 out the purposes and provisions of this chapter.

20 SECTION 2. That Section 39-2812, Idaho Code, be, and the same is hereby
 21 amended to read as follows:

22 39-2812. PESTS -- PUBLIC HEALTH AND WELFARE -- DISASTERS -- EMERGEN-
 23 CIES -- INTERIM ABATEMENT DISTRICTS. (1) To provide for the timely response
 24 to an elevated or anticipated pest population that may constitute a risk
 25 to public health and welfare, the board of county commissioners of each
 26 county of this state, in collaboration with duly recognized local and state
 27 officials, and after a public hearing is called for such purpose as a spe-
 28 cial meeting pursuant to the provisions of section 74-204(2), Idaho Code,
 29 is hereby granted full power and authority to declare such pests as public
 30 health and welfare pests, and to initiate activities to hinder in the poten-
 31 tial spread of disease, or adverse economic impact, caused by these pests by
 32 taking appropriate steps to intervene in the natural biological cycle of the
 33 pests or disease.

34 (2) Boards of county commissioners are further authorized and empow-
 35 ered, in the event of a disaster or emergency declared by such boards, to
 36 make direct appropriations for the purpose of controlling public health and
 37 welfare pests as declared pursuant to this section. All moneys raised by
 38 direct appropriation shall be placed in a county public health and welfare
 39 pest fund, which shall be used exclusively for the control of pests of public
 40 health and welfare significance and for payment of all necessary expenses
 41 incurred in such control program. In addition, the county may impose an an-
 42 nual property tax assessment pursuant to section 39-2805, Idaho Code, and
 43 in accordance with the provisions of sections 63-802 and 63-803, Idaho Code,
 44 for the term of the disaster or emergency or until all expenses incurred dur-
 45 ing the disaster or emergency have been recovered. Such fund shall be a re-
 46 volving fund and all moneys returned to the fund under any of the provisions
 47 of this chapter shall continue to be available for the operation of the con-
 48 trol program.

(3) The disaster or emergency declaration of a pest of public health and welfare significance within a county and subsequent pest management activity shall, except as provided herein, place the whole county into an interim abatement district for administrative purposes for no more than two (2) years. The transition of an interim abatement district into a formally defined abatement district, shall be brought to a vote of the electorate within twenty-four (24) months of the declaration, subject to the notification and establishment requirements provided in this chapter, and conducted during a general election held on the first Tuesday following the first Monday in November of even-numbered years, and if passed, the district shall be recognized and the provisions of this chapter shall be implemented. If the measure fails, the balance of revolving fund moneys shall be distributed as required by state law. In the event the disaster or emergency exceeds the county's capacity or resources, provisions should be made to request state or federal disaster or emergency funds to address the evolving situation. If the interim abatement district provides the same service as an existing abatement district, the interim abatement district shall exclude any area within an existing abatement district.

(4) Aerial abatement methods shall be used to deploy adulticides within an abatement district only when the respective board of county commissioners has declared a health emergency. In such cases, aerial adulticide abatement methods may be used only to treat property within the abatement district that has not been exempted pursuant to section 39-2814, Idaho Code, to the best of the abatement applicator's ability.

(a) The restriction provided by this subsection shall not apply to aerial abatement methods deploying a larvicide on properties that have not been excluded.

(b) For the purposes of this subsection, "aerial abatement methods" means abatement using planes, drones, or similar apparatuses.

(5) At least ten (10) days prior to the start of any abatement activities for the year, unless an emergency is declared, the abatement district shall publish notice.

(a) Such notice shall be published on the district's and the county's website, if such entities have websites, and shall:

(i) Describe the abatement activity, location, and methods to be used;

(ii) Disclose all possible products authorized for use during the abatement season; and

(iii) Provide information on how to opt out of abatement-related activities.

(b) Notice shall also be published in a newspaper of general circulation within the district directing individuals to the website or to a specific place where they can obtain more information regarding the abatement activity, location, products, and opt-out.

SECTION 3. That Chapter 28, Title 39, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 39-2814, Idaho Code, and to read as follows:

39-2814. PARTICIPATION IN ABATEMENT DISTRICTS BY PROPERTY OWNERS. (1) An individual who owns property within an abatement district may submit a

1 written notice that includes the physical address of the property to the
 2 board of county commissioners for the county in which the property is located
 3 requesting that the property be exempted from any and all abatement-related
 4 activities. The notice shall remain in effect until the owner of the prop-
 5 erty rescinds the notice in writing.

6 (2) (a) In the event that a government agent knowingly allows abatement-
 7 related activities to occur on, over, or above an exempted property, the
 8 owner may:

9 (i) Submit evidence of the violation to the respective abatement
 10 district; and

11 (ii) Initiate a civil action against the respective abatement
 12 district.

13 (b) If a court determines that a violation of this chapter occurred:

14 (i) The abatement district shall be subject to a one thousand dol-
 15 lar (\$1,000) fine for each violation, which shall be paid to the
 16 aggrieved owner; and

17 (ii) The court shall award reasonable attorney's fees and costs to
 18 the prevailing party.

19 SECTION 4. That Section 39-2814, Idaho Code, be, and the same is hereby
 20 amended to read as follows:

21 ~~39-2814~~ 39-2815. SEVERABILITY. The provisions of this chapter are
 22 hereby declared to be severable and if any provision of this chapter or the
 23 application of such provision to any person or circumstance is declared in-
 24 valid for any reason, such declaration shall not affect the validity of the
 25 remaining portions of this chapter.

26 SECTION 5. An emergency existing therefor, which emergency is hereby
 27 declared to exist, this act shall be in full force and effect on and after its
 28 passage and approval.